

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 27, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Johnson, and pursuant to support received by Mr. Cook and Mr. Roybal, item #23(c) was removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Mr. Cook and Mr. Johnson, item #23(f) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 13, 2023. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 16, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk’s Office. The purpose of the hearing having been met, Mayor Collins closed the hearing and referred the applications to Finance Committee. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Roybal.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for 9.87 acres of land situated in portions of Sunnyside Addition and Sunnyside Addition Second Filing, Section 12, T.13 N., R. 67 W., 6th P.M., Laramie County, Wyoming. The purpose of the hearing having been met, Mayor Collins closed the hearing. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Roybal.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Ridge Road and Holland Court (Postponed from February 13, 2023). Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4492)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agriculture and Rural Residential to NR-3 Neighborhood Residential-High Density for land located southwest of the intersection of Ridge Road and Holland Court (Postponed from February 13, 2023). Mr. Cook advised there was no recommendation from the Public Services Committee. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Aldrich moved to amend by changing the County A-1 Agricultural and Rural Residential zoning classification to MR Medium Density Residential, seconded by Mr. Laybourn. Motion to amend failed. Voting “yes” – Dr. Aldrich, Mayor Collins, Mr. Cook and Mr. Laybourn. Voting “no” - Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White. Main motion failed. Voting “yes” – Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal, Mr. Segrave and Mr. White. Voting “no” – Dr. Aldrich, Mr. Laybourn and Dr. Rinne. After a brief recess at 7:26 p.m., Dr. Aldrich, having voted on the prevailing side of the main motion that failed, moved to reconsider the vote, seconded by Mr. Laybourn. Motion to reconsider carried. Voting “yes” – Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. White. Voting “no” – Dr. Rinne, Mr. Roybal and Mr. Segrave. Dr. Aldrich moved to amend by changing the County A-1 Agricultural and Rural Residential zoning classification to MR Medium Density Residential, seconded by Mr. Laybourn. Mr. Roybal moved to postpone until March 13, 2023, seconded by Mr. Esquibel. Mr. Johnson called a point of order on the motion to postpone, and Mayor Collins advised the motion was appropriate. Motion to postpone carried. Voting “yes” – all members of the governing body. Public comment was made by: Brad Emmons, AVI, agent for the applicant, Jason Stephen, Bedrock Development, Roger Alexander, Stephanie Pyle, Jon Cecil, Jill Randall, Elizabeth Stapel, Patrick Rudd, Peggy Escamilla, Rebecca Murchie, Adam Styers, Sharon Tuggle, Paul Rickets, Matt Kasper, Gateway Homes, Ryan Whitehead and Beth Cecil. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave.

ORDINANCE – 2nd READING – Amending Section 1.3 of the Unified Development Code (UDC), amending the enforcement regulations of the UDC and making other conforming amendments. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Comments were made by the following members of the governing body: Mr. Laybourn, Dr. Rinne and Mr. Roybal.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business and CB Community Business to CB Community Business for land located between Old Happy Jack Road and Lincolnway, west of Missile Drive. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Brad Emmons, AVI, agent for the applicant.

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., R. 67 W., 6th P.M., Laramie County Wyoming, generally located east of Ridge Rd. between Charles St. and Pershing Blvd., west of Wills Rd. between Cheyenne St. and Pershing Blvd., and northeast of the intersection of Pershing Blvd. and Wills Rd. – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Segrave and Mr. White)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the Zoning Classification from County MU Mixed Use to MUB Mixed-Use Business Emphasis and CB Community Business for tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., R. 67 W., 6th P.M., Laramie County, Wyoming, generally located east of Ridge Rd. between Charles St. and Pershing Blvd., west of Wills Rd. between Cheyenne St. and Pershing Blvd., and northeast of the intersection of Pershing Blvd. and Wills Rd. – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Segrave and Mr. White)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Dell Range Addition, Sixth Filing, a replat of a portion of Tract 25, Dell Range Addition, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of Ridge Road and Holland Court) (postponed from February 13, 2023). Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to postpone until March 13, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Public comment was made by: Brad Emmons, AVI, agent for the applicant.

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6304)

[CA] RESOLUTION – Authorizing submission of the Americorps Foster Grandparent Program application to Americorps on behalf of the Governing Body of the City of Cheyenne to submit continuation application for the next three years of funding for the Youth Alternatives Foster Grandparent Program necessary support items. Motion (per Consent Agenda) carried. (#6305)

[CA] RESOLUTION – Certifying the Cheyenne Transit Program 2023 Transit Development Plan. Motion (per Consent Agenda) carried. (#6306)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Back 40 Subdivision, Third Filing, a replat of a portion of Lot 1, Block 1 Back 40 Subdivision First Filing, Lot 1, Block 2 and Lot 1, Block 3 Back 40 Subdivision Second Filing, and Lot 1 Block 1 Cheyenne Ice & Events Center 4th Filing being situated in a portion of Section 1, Township 13 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located north of the intersection of Grant Avenue and W Lincolnway). Motion (per Consent Agenda) carried. (#6307)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Centennial Heritage, 2nd Filing, a replat of Lots 8 thru 12, Block 2 Centennial Heritage and a portion of the NW1/4 of Section 2, Township 13 North Range 66 West, City of Cheyenne, Laramie County, Wyoming (located south of Raleigh Drive, near Savannah Drive and Taft Avenue). Motion (per Consent Agenda) carried. (#6308)

[CA] RESOLUTION – Expressing the will of the Governing Body recognizing the need to provide City Boards, Commissions, and Councils with the tools they need to be effective, efficient, and transparent. Motion (per Consent Agenda) carried. (#6309)

RESOLUTION – Authorizing PaydHealth, LLC, to provide advocacy and financial case management services for eligible specialty prescription drugs through alternative funding programs effective July 1, 2023. Mr. Johnson declared conflict of interest and vacated council chambers. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Roybal. Mr. Esquibel moved to postpone to March 13, 2023, seconded by Mr. Cook. Motion to postpone failed. Voting “yes” – Mr. Esquibel and Mr. Cook. Voting “no” - Dr. Aldrich, Mayor Collins, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White. Main motion carried. Voting “yes” - all members of the governing body present in council chambers with the exception of Mr. Esquibel voting “no”. Public comment was made by: Dianna Madvig, Novo Benefits and Seth Lloyd. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel and Dr. Rinne and Mr. Roybal (#6310)

Preliminary Plat for Hill Heights Addition, 2nd Filing, a replat of the north 132 feet of the east 120 feet of the east 190 feet of the SE 1/4 of Tract 36, Hill Heights Addition, City of Cheyenne, Laramie County, Wyoming. Mr. Cook moved to acknowledge the Planning Commission’s recommendation to approve with staff recommendations 1-3 and the ability to include 10 lots in a similar orientation, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Brandon Swain, owner and developer of property. Comment was made by the following member of the governing body: Dr. Rinne.

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for project scoping of the Cheyenne 18th Street Storm Sewer Interceptor Advance Assistance Project. Motion (per Consent Agenda) carried. (#7687)

[CA] Professional Services Agreement between the City of Cheyenne and BenchMark Engineers, PC for the Transfer Station Lift Station Upgrade or Replacement Project. Motion (per Consent Agenda) carried (in an amount not to exceed \$88,425.00). (#7688)

Memorandum of Understanding between the City of Cheyenne and Arts Cheyenne for cooperative interaction, art-based initiatives and continued endorsement of Arts Cheyenne as the official local arts agency. Mr. White moved to approve in an amount not to exceed \$50,000.00, seconded by Mr. Roybal. Motion carried. Voting “yes” – Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Mr. Roybal, Mr. Segrave and Mr. White. Voting “no” - Mayor Collins, Mr. Cook, Mr. Johnson and Dr. Rinne. Public comment was made by: Bill Lindstrom, Arts Cheyenne. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mayor Collins, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave. (#7689)

[CA] Memorandum of Understanding between the City of Cheyenne and Goat Systems, LLC, for clarification and assurances of City development and reimbursement processes. Motion (per Consent Agenda) carried. (#7690)

[CA] Professional Services Contract between the City of Cheyenne and Overstreet Homar & Kuker for legal services for the Contractor Licensing Board. Motion (per Consent Agenda) carried (in an amount not to exceed \$199,999.99). (#7691)

Professional Services Contract between the City of Cheyenne and Overstreet Homar & Kuker for legal services for the Board of Adjustment. Mr. White moved to approve in an amount not to exceed \$7,200.00, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated February 11, 2023, seconded by Mr. Esquibel. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7692)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County for EOD, SWAT, and CNU Operations and Extraterritorial Law Enforcement assistance and activities. Motion (per Consent Agenda) carried. (#7693)

Donation Agreement between the City of Cheyenne and Union Pacific Railroad Company to accept a donation of selected fleet railroad cars. Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to remove “Attachment A” and replace with the list of 4 cars to be accepted by the City, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. Mr. White moved to remove “Attachment C”, the Engineering Report & Proposal, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Main motion as twice amended carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Collins and Mr. Segrave. (#7694)

[CA] 2023-2025 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Board of Public Utilities and McGee, Hearne & Paiz, LLP to provide financial and compliance auditing services for the fiscal years ending June 30, 2023 and 2024 (General Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Granite Peak Development, LP, Clear Creek Land Company, LLC, Laramie Land Holdings, LLC, Cheyenne Logistics Hub, LLC, and Swan Ranch LLC to memorialize the payment of past fees by the parties and to restate prior Development Agreements – referred to Public Services Committee.

[CA] Consideration of Bid #E-12-23 for lift-equipped Transit vehicles for the City of Cheyenne, Transit Division. Motion (per Consent Agenda) carried (accepted bid from Davey Coach, Sedalia, CO, in an amount not to exceed \$1,282,573.99).

[CA] Consideration of Bid #S-11-23 for an agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River for the 2023 City Overlay Part #2 project. Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$2,794,156.69). (#7695)

[CA] Consideration of Bid #S-9-23 for an agreement between the City of Cheyenne and Welding & Machine Inc. for the Sanitation Division Transfer Station Welding Repairs project. Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$108,041.54). (#7696)

[CA] Consideration of Bid #S-15-23 for an Agreement between the City of Cheyenne and Inman Roofing, Inc., for the Sanitation Transfer Station Reroof Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration to purchase two (2) used SUV's for the City of Cheyenne, Compliance Department (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Transfer of ownership of retail liquor license application filed with the City Clerk's Office for Wyoming Horse Racing, LLC d/b/a Horse Palace, Lot 1, Block One, Swan Ranch Rail Park, 16th Filing, Cheyenne, WY (license currently held by Poor Richard's d/b/a Poor Richard's). Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held March 13, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 3.47 acres of land located at 908 Southwest Drive, Laramie County, Wyoming (located west of Southwest Drive, south of I-80).

There being no further business to come before the governing body, the meeting was officially adjourned at 8:38 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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